DATA PROTECTION: DPDP ACT AND CYBERSECURITY

PRIVACY AND CYBER TWIN → DPDP ACTOR CHAIN → SCOPE GATEWAY → LEGAL STATUS STAIRCASE → THREE-TRANCHE CHRONOLOGY → LAWFUL PROCESSING AND RIGHTS

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure: the grey E card is optional enrichment only and never repairs missing core content.

◆ PRIMARY CORE FLOW ◉ SUBORDINATE EXTRA ★ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g1 • explicit approval of this exact generation is required • all prior artifacts unchanged

00

STAGE 00 PRIVACY AND CYBER TWIN RAIL

PRIVACY AND CYBER TWIN RAIL | LAWFUL COLLECTION, USE, RETENTION AND REDRESS | PREVENTION, DETECTION, RESPONSE AND RECOVERY | SAME BREACH | TWO QUESTIONS AND POTENTIALLY TWO RESPONSE CHAINS | DPDP BOARD | COMPLEMENTARY DOMAINS ARE NOT INTERCHANGEABLE

CONCEPT / ARCHITECTURE

- PRIVACY → lawful collection, use, retention and redress
- CYBERSECURITY → prevention, detection, response and recovery

MECHANISM / APPLICATION

- SAME BREACH → two questions and potentially two response chains
- DPDP BOARD != CERT-In != NCIIPC != I4C

READINESS / STATUS LIMIT

- RULE → complementary domains are not interchangeable
- PRIVACY → lawful collection, use, retention and redress

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: DPDP BOARD != CERT-In != NCIIPC != I4C.

01

STAGE 01 DPDP ACTOR CHAIN

DPDP ACTOR CHAIN | DATA PRINCIPAL | RIGHTS-BEARING INDIVIDUAL | DATA FIDUCIARY | DECIDES PURPOSE AND MEANS | DATA PROCESSOR | ACTS FOR FIDUCIARY | CONSENT MANAGER

DATA PRINCIPAL → rights-bearing individual

DATA FIDUCIARY → decides purpose and means → DATA PROCESSOR → acts for Fiduciary → CONSENT MANAGER → Board-registered consent interface

STARTING CONDITION / INPUT

- DATA PRINCIPAL → rights-bearing individual
- DATA FIDUCIARY → decides purpose and means

SCIENTIFIC OR ENGINEERING MECHANISM

- DATA PROCESSOR → acts for Fiduciary
- CONSENT MANAGER → Board-registered consent interface

OUTPUT / FAILURE BOUNDARY

- BOARD → specified adjudication; TDSAT hears appeals
- DATA PRINCIPAL → rights-bearing individual

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CONSENT MANAGER → Board-registered consent interface; BOARD → specified adjudication; TDSAT hears appeals.

02

STAGE 02 SCOPE GATEWAY

SCOPE GATEWAY | PERSONAL DATA? | IF NO, DPDP PERSONAL-DATA ROUTE STOPS | DIGITAL OR DIGITISED LATER? | IF YES, SCOPE CAN ATTACH | OUTSIDE INDIA? | GOODS OR SERVICES OFFERED IN INDIA TEST | NOT AUTOMATICALLY COVERED

PERSONAL DATA? → if no, DPDP personal-data route stops

DIGITAL OR DIGITISED LATER? → if yes, scope can attach → OUTSIDE INDIA? → goods or services offered in India test → ANONYMISED / NON-PERSONAL → not automatically covered

CONCEPT / ARCHITECTURE

- PERSONAL DATA? → if no, DPDP personal-data route stops
- DIGITAL OR DIGITISED LATER? → if yes, scope can attach

MECHANISM / APPLICATION

- OUTSIDE INDIA? → goods or services offered in India test
- ANONYMISED / NON-PERSONAL → not automatically covered

READINESS / STATUS LIMIT

- RULE → identify data class before compliance claim
- PERSONAL DATA? → if no, DPDP personal-data route stops

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RULE → identify data class before compliance claim.

03

STAGE 03 LEGAL STATUS STAIRCASE

LEGAL STATUS STAIRCASE | PARENT STATUTE EXISTS | INSTRUMENT PUBLISHED IN GAZETTE | SPECIFIED PROVISION IS IN FORCE | INSTITUTIONAL EVIDENCE REQUIRED | APPLICABLE PROCEEDING OR OUTCOME REQUIRED

ENACTED → parent statute exists

NOTIFIED → instrument published in Gazette → COMMENCED → specified provision is in force → STAFFED / ADJUDICATING → institutional evidence required

STARTING CONDITION / INPUT

- ENACTED → parent statute exists
- NOTIFIED → instrument published in Gazette

SCIENTIFIC OR ENGINEERING MECHANISM

- COMMENCED → specified provision is in force
- STAFFED / ADJUDICATING → institutional evidence required

OUTPUT / FAILURE BOUNDARY

- ENFORCED → applicable proceeding or outcome required
- ENACTED → parent statute exists

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STAFFED / ADJUDICATING → institutional evidence required; ENFORCED → applicable proceeding or outcome required.

04

STAGE 04 THREE-TRANCHE CHRONOLOGY

THREE-TRANCHE CHRONOLOGY | 13 NOV 2025 | DEFINITIONS, BOARD PROVISIONS, RTI AMENDMENT | ONE YEAR | S.6(9), S.27(1)(D), RULE 4 | EIGHTEEN MONTHS | SUBSTANTIVE COMPLIANCE CORE AND PENALTIES | RULES NOTIFIED

13 NOV 2025 → definitions, Board provisions, RTI amendment → ONE YEAR → s.6(9), s.27(1)(d), rule 4 → EIGHTEEN MONTHS → substantive compliance core and penalties → RULES NOTIFIED → does not erase deferred dates → DATE CHECK → re-verify before present-tense writing

CONCEPT / ARCHITECTURE

- 13 NOV 2025 → definitions, Board provisions, RTI amendment
- ONE YEAR → s.6(9), s.27(1)(d), rule 4

MECHANISM / APPLICATION

- EIGHTEEN MONTHS → substantive compliance core and penalties
- RULES NOTIFIED → does not erase deferred dates

READINESS / STATUS LIMIT

- DATE CHECK → re-verify before present-tense writing
- 13 NOV 2025 → definitions, Board provisions, RTI amendment

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RULES NOTIFIED → does not erase deferred dates.

05

STAGE 05 LAWFUL PROCESSING AND RIGHTS LOOP

LAWFUL PROCESSING AND RIGHTS LOOP | SPECIFIED INFORMATION | CONSENT OR S.7 CERTAIN LEGITIMATE USE | LAWFUL GROUND | FIDUCIARY AND PROCESSOR RESPONSIBILITIES | NOMINATION S.15 DUTIES | RIGHTS HOLDER ALSO HAS STATUTORY DUTIES

NOTICE → specified information → CONSENT OR s.7 CERTAIN LEGITIMATE USE → lawful ground → PROCESSING → Fiduciary and Processor responsibilities → ACCESS / CORRECTION / ERASURE / GRIEVANCE / NOMINATION s.15 DUTIES → rights holder also

STARTING CONDITION / INPUT

- NOTICE → specified information
- CONSENT OR s.7 CERTAIN LEGITIMATE USE → lawful ground

SCIENTIFIC OR ENGINEERING MECHANISM

- PROCESSING → Fiduciary and Processor responsibilities
- ACCESS / CORRECTION / ERASURE / GRIEVANCE / NOMINATION s.15 DUTIES → rights holder also has statutory duties

OUTPUT / FAILURE BOUNDARY

- NOTICE → specified information
- CONSENT OR s.7 CERTAIN LEGITIMATE USE → lawful ground

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ACCESS / CORRECTION / ERASURE / GRIEVANCE / NOMINATION s.15 DUTIES → rights holder also has statutory duties.

06

STAGE 06 SDF GOVERNANCE STACK

SDF GOVERNANCE STACK | GOVERNMENT NOTIFICATION | CREATES SDF STATUS | RISK FACTORS | SCALE, SENSITIVITY AND PUBLIC CONSEQUENCES | INDIA-BASED DPO | GOVERNANCE CONTACT | INDEPENDENT AUDITOR + DPIA + AUDITS

GOVERNMENT NOTIFICATION → creates SDF status

RISK FACTORS → scale, sensitivity and public consequences → INDIA-BASED DPO → governance contact → INDEPENDENT AUDITOR + DPIA + AUDITS → added assurance

CONCEPT / ARCHITECTURE

- GOVERNMENT NOTIFICATION → creates SDF status
- RISK FACTORS → scale, sensitivity and public consequences

MECHANISM / APPLICATION

- INDIA-BASED DPO → governance contact
- INDEPENDENT AUDITOR + DPIA + AUDITS → added assurance

READINESS / STATUS LIMIT

- TRAP → large entity is not automatically an SDF
- GOVERNMENT NOTIFICATION → creates SDF status

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP → large entity is not automatically an SDF.

07

STAGE 07 SECTIONS 16 AND 17 MATRIX

SECTIONS 16 AND 17 MATRIX | NOTIFIED RESTRICTED DESTINATIONS; PERMISSIVE DEFAULT | SECTORAL RULE | MAY IMPOSE STRICTER LOCALISATION S.17(1) | PROCESSING-SPECIFIC EXEMPTIONS S.17(2)(A) | NOTIFIED STATE-INSTRUMENTALITY EXEMPTION | TRANSFER RULE AND EXEMPTION RULE ANSWER DIFFERENT QUESTIONS

SYSTEM / DEVICE / INSTITUTION	DECISIVE TECHNICAL DISTINCTION	STATUS / UNIT / EVIDENCE LIMIT
s.16 → notified restricted destinations; permissive default	RULE → transfer rule and exemption rule answer different questions	SECTORAL RULE → may impose stricter localisation s.17(1) → processing-specific exemptions s.17(2)(a) → notified State-instrumentality exemption
SECTORAL RULE → may impose stricter localisation s.17(1) → processing-specific exemptions s.17(2)(a) → notified State-instrumentality exemption	s.16 → notified restricted destinations; permissive default	RULE → transfer rule and exemption rule answer different questions

SYSTEM / DEVICE / INSTITUTION

- s.16 → notified restricted destinations; permissive default
- SECTORAL RULE → may impose stricter localisation s.17(1) → processing-specific exemptions s.17(2)(a) → notified State-instrumentality exemption

DECISIVE TECHNICAL DISTINCTION

- RULE → transfer rule and exemption rule answer different questions
- s.16 → notified restricted destinations; permissive default

STATUS / UNIT / EVIDENCE LIMIT

- SECTORAL RULE → may impose stricter localisation s.17(1) → processing-specific exemptions s.17(2)(a) → notified State-instrumentality exemption
- RULE → transfer rule and exemption rule answer different questions

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RULE → transfer rule and exemption rule answer different questions.

08

STAGE 08 CONSEQUENTIAL AMENDMENT FORK

CONSEQUENTIAL AMENDMENT FORK | RTI S.8(1)(J) SUBSTITUTED IN IMMEDIATE TRANCHE | PRIVACY <-- TRANSPARENCY | CONTESTED RIGHTS BALANCE S.44(2) | IT ACT S.43A OMISSION IN DEFERRED TRANCHE | LIVE CHANGE | SCHEDULED CHANGE | IDENTIFY PARENT ACT, SECTION AND COMMENCEMENT

CONCEPT / ARCHITECTURE

- s.44(3) → RTI s.8(1)(j) substituted in immediate tranche
- PRIVACY <-- TRANSPARENCY --> contested rights balance s.44(2) --> IT Act s.43A omission in deferred tranche

MECHANISM / APPLICATION

- LIVE CHANGE != SCHEDULED CHANGE
- RULE → identify parent Act, section and commencement

READINESS / STATUS LIMIT

- s.44(3) → RTI s.8(1)(j) substituted in immediate tranche
- PRIVACY <-- TRANSPARENCY --> contested rights balance s.44(2) --> IT Act s.43A omission in deferred tranche

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RULE → identify parent Act, section and commencement.

09

STAGE 09 PENALTY RAIL

PENALTY RAIL | SECURITY-SAFEGUARD FAILURE | MAXIMUM RS 250 CRORE | BREACH NOTICE | CHILDREN'S DUTIES | MAXIMUM RS 200 CRORE | SDF DUTIES | MAXIMUM RS 150 CRORE

SECURITY-SAFEGUARD FAILURE → maximum Rs 250 crore → BREACH NOTICE / CHILDREN'S DUTIES → maximum Rs 200 crore → SDF DUTIES → maximum Rs 150 crore → CHARACTER → civil and financial → NOT INCLUDED → imprisonment or automatic victim compensation

CONCEPT / ARCHITECTURE

- SECURITY-SAFEGUARD FAILURE → maximum Rs 250 crore
- BREACH NOTICE / CHILDREN'S DUTIES → maximum Rs 200 crore

MECHANISM / APPLICATION

- SDF DUTIES → maximum Rs 150 crore
- CHARACTER → civil and financial

READINESS / STATUS LIMIT

- NOT INCLUDED → imprisonment or automatic victim compensation
- SECURITY-SAFEGUARD FAILURE → maximum Rs 250 crore

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: NOT INCLUDED → imprisonment or automatic victim compensation.

10

STAGE 10 CYBER INSTITUTION ROUTER

CYBER INSTITUTION ROUTER | INCIDENT RESPONSE AND DIRECTIONS | NOTIFIED CII PROTECTION | CYBERCRIME COORDINATION, PORTAL AND 1930 | DATA PROTECTION BOARD | DPDP COMPLIANCE ADJUDICATION | ROUTE BY FUNCTION, STATUTE AND ADMINISTRATIVE HOME

CERT-In / MeitY / s.70B → incident response and directions

NCIIPC / NTRO / s.70A → notified CII protection → I4C / MHA → cybercrime coordination, portal and 1930 → DATA PROTECTION BOARD → DPDP compliance adjudication

CONCEPT / ARCHITECTURE

- CERT-In / MeitY / s.70B → incident response and directions
- NCIIPC / NTRO / s.70A → notified CII protection

MECHANISM / APPLICATION

- I4C / MHA → cybercrime coordination, portal and 1930
- DATA PROTECTION BOARD → DPDP compliance adjudication

READINESS / STATUS LIMIT

- RULE → route by function, statute and administrative home
- CERT-In / MeitY / s.70B → incident response and directions

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RULE → route by function, statute and administrative home.

11

STAGE 11 ROUTED PYQ ANSWER SPINE

ROUTED PYQ ANSWER SPINE | DATA-PROTECTION REPORT | STRENGTHS PLUS WEAKNESSES | GDPR COMPARATOR; DIGITAL-SIGNATURE AUTHENTICATION | DPDP CONTEXT, SALIENT FEATURES AND DATED STATUS | PRIVACY COMPLIANCE PLUS CYBER RESPONSE | RIGHTS, RESILIENCE, CAPACITY AND STATUS DISCIPLINE

2018 → data-protection report: strengths plus weaknesses → 2019 → GDPR comparator; digital-signature authentication → 2024 → DPDP context, salient features and dated status → BREACH → privacy compliance plus cyber response → CONCLUDE → rights, resilience, capacity and status discipline

CONCEPT / ARCHITECTURE

- 2018 → data-protection report: strengths plus weaknesses
- 2019 → GDPR comparator; digital-signature authentication

MECHANISM / APPLICATION

- 2024 → DPDP context, salient features and dated status
- BREACH → privacy compliance plus cyber response

READINESS / STATUS LIMIT

- CONCLUDE → rights, resilience, capacity and status discipline
- 2018 → data-protection report: strengths plus weaknesses

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CONCLUDE → rights, resilience, capacity and status discipline.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT | INNOVATION VERSUS PRIVACY | THE LAW AIMS TO PROTECT PERSONAL DATA WHILE AVOIDING | BOARD DESIGN AND INDEPENDENCE | THE BOARD IS A DIGITALLY FUNCTIONING ADJUDICATOR, NOT A | THE STRONGEST CRITIQUE IS THEREFORE STRUCTURAL (COMPOSITION, TENURE, APPOINTMENT) | ENFORCEMENT ASYMMETRY | THE STATE IS BOTH THE LARGEST PROCESSOR OF PERSONAL

OPTIONAL SCIENTIFIC / ENGINEERING DEPTH

- CAUTION: Innovation versus privacy: the law aims to protect personal data while avoiding a blanket anti-innovation posture.
- CAUTION: Board design and independence: the Board is a digitally functioning adjudicator, not a full-spectrum regulator — it
- The strongest critique is therefore structural (composition, tenure, appointment) rather than merely capacity-based.
- CAUTION: Enforcement asymmetry: the State is both the largest processor of personal data in India and the entity

READINESS, UNIT OR STATUS LIMIT

- A privacy regime whose principal risk-holder can opt out by notification is analytically incomplete, whatever its private-sector provisions.
- CAUTION: The RTI amendment (s.44(3)): by substituting RTI s.8(1)(j) with a broad exemption for "information which relates to
- This pits privacy against transparency — a genuine rights-versus-rights conflict, not a technical amendment, and the most likely
- CAUTION: Cross-border transfer model: India did not adopt an absolute data-localisation model in the reviewed Act text

COMPARATIVE TECHNOLOGY / GOVERNANCE NUANCE

- instead it retained a notification-based restriction power — lighter than the 2019 Bill, but creating regulatory uncertainty because
- CAUTION: What the Act omits: no separate class of sensitive personal data, no explicit right to data
- portability or erasure-by-design, no statutory data-breach compensation to individuals, no framework for non-personal data , and no
- algorithmic-decision safeguard — the last being the visible seam where DPDP meets AI governance (Topic 09).

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels